

Rakesh Kumar Srivastava v. State of U.P.

Allahabad High Court · Division Bench · 2 March 2017 · Writ-C No. 9482 of 2017 · **Writ disposed; petitioner to deposit arrears and apply for name change under the 2005 Code.**

HEADNOTE

A successor who is willing to pay arrears demanded by a recovery citation issued in the name of a deceased consumer cannot obtain transfer of the connection by writ. He must deposit the amount and apply for change of name under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

The electricity connection of House No. 21-15/83-A 18, Shivpuri Bypass, Varanasi stood in the name of the petitioner's mother, who died on 20 December 2011. A recovery citation for Rs 50,000.25 and other charges was later issued in her name. The petitioner told the High Court he would deposit that amount if the connection were transferred to him. The Division Bench disposed of the writ without deciding the citation or the transfer on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3

change of name

HOLDING

Where a recovery citation for electricity arrears stands in the name of a deceased consumer, a successor seeking transfer of the connection must deposit the demanded amount and move an application for change of name under the Electricity Supply Code, 2005; the High Court will not itself order the transfer in writ. ¶ 1

PRINCIPLE TAGS

arrears-run-with-the-premises

A successor who is willing to pay arrears demanded by a recovery citation issued in the name of a deceased consumer cannot obtain transfer of the connection by writ. He must deposit the amount and apply for change of name under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF A RECOVERY CITATION ISSUED IN THE NAME OF A DECEASED CONSUMER

The Court neither quashed nor sustained the citation; it only directed deposit and a Code application. ¶ 1

NOT DECIDED — ENTITLEMENT ON MERITS TO CHANGE OF NAME OR TRANSFER OF THE CONNECTION

Left to an application under the Electricity Supply Code, 2005. ¶ 1